IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT-III

ITEM No. 103
CA.CAA-34/ND/2025

IN THE MATTER OF:
R SYSTEMS INTERNATIONAL LIMITED With .... Petitioner/Applicant
VELOTIO TECHNOLOGIES PRIVATE LIMITED

Order under Section 230-232 of the Companies Act, 2013.

Order delivered on 15.04.2025

CORAM:
SHRI BACHU VENKAT BALARAM DAS
HON'BLE MEMBER (JUDICIAL)

DR. SANJEEV RANJAN
HON'BLE MEMBER (TECHNICAL)

HYBRID HEARING (PHYSICAL & VC)

PRESENT:
For Applicant : Ms. Shikha Tandon, Mr. Zaid Drabu, Ms. Sejal Sethi, Mr. Adhiraj Singh Chauhan, Advs.
For Respondent :

ORDER

This application has been filed by M/s. R Systems International Limited With M/s. Velotio Technologies Private Limited under Section 230-232 of the Companies Act, 2013, seeking the following the prayers:-

(a) Pass appropriate order(s)/direction(s) for holding and convening a virtual meeting of the equity shareholders of the Amalgamated Company, through video conferencing or any other audio visual means capable of being recorded, to consider and, if thought fit, approve, with or without modification(s), the Scheme by voting through electronic means, including remote e-voting, at such time and date as this Hon'ble Tribunal may deem fit; and direct the appointment of a Chairperson, an Alternate Chairperson and a Scrutinizer for conducting such meeting of the equity shareholders of the Amalgamated Company to be held on such terms as this Hon'ble Tribunal may deem fit;

(b) Pass appropriate order(s)/direction(s) for dispensing with the convening, holding and conducting the virtual meeting of secured creditors of the Amalgamated

Company under the provisions of Sections 230 - 232 of the Companies Act, 2013 read with Rule 5 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, in the interest of justice and in view of the consent affidavit given 1 out of 1 secured creditor, constituting 100% of the outstanding secured debt in value, of the Amalgamated Company, as on March 12, 2025. Alternatively, in the event this Hon'ble Tribunal holds that the meeting of the secured creditors of the Amalgamated Company cannot be dispensed with, this Hon'ble Tribunal may be pleased to pass appropriate order(s)/direction(s) for holding and convening a virtual meeting of the secured creditors of the Amalgamated Company, to consider and, if thought fit, approve, with or without modification(s), the Scheme by voting through electronic means, including remote e-voting, at such time and date as this Hon'ble Tribunal may deem fit; and direct the appointment of a Chairperson, an Alternative Chairperson and a Scrutinizer for conducting such meeting of the secured creditors of the Amalgamated Company to be held on such terms as this Hon'ble Tribunal may deem fit;

(c) *Pass appropriate order(s)/ direction(s) for convening, holding and conducting the virtual meeting of unsecured creditors of the Amalgamated Company through video conferencing or any other audio visual means capable of being recorded, to consider and, if thought fit, approve, with or without modification(s), the Scheme by voting through electronic means, including remote e-voting, at such time and date as this Hon'ble Tribunal may deem fit; and direct the appointment of a Chairperson, an Alternate Chairperson and a Scrutinizer for conducting such meeting of the unsecured creditors of the Amalgamated Company to be held on such terms as this Hon'ble Tribunal may deem fit;*

(d) *Pass appropriate order(s)/ direction(s) for dispensing with the convening, holding and conducting the meeting of equity shareholders of the Amalgamating Company No.1 under the provisions of Sections 230 - 232 of the Companies Act, 2013 read with Rule 5 of the Companies (Compromises, Arrangements and*

Amalgamations) Rules, 2016, in the interest of justice and in view of the consent affidavits given by 2 shareholders having 100% equity shareholding, in number and value, in the Amalgamating Company No. 1, as on March 14, 2025. Alternatively, in the event this Hon'ble Tribunal holds that the meeting of the equity shareholders of the Amalgamating Company No. 1 cannot be dispensed with, this Hon'ble Tribunal may be pleased to pass appropriate order(s)/ direction(s) for holding and convening a virtual meeting of the equity shareholders of the Amalgamating Company No. 1, to consider and, if thought fit, approve, with or without modification(s), the Scheme by voting through electronic means, including remote e-voting, at such time and date as this Hon'ble Tribunal may deem fit; and direct the appointment of a Chairperson, an Alternate Chairperson and a Scrutinizer for conducting such meeting of the equity shareholders of the Amalgamating Company No. 1 to be held on such terms as this Hon'ble Tribunal may deem fit;

(e) *Pass appropriate order(s)/ direction(s) for dispensing with the convening, holding and conducting the meeting of shareholders holding optionally convertible redeemable preference shares of the Amalgamating Company No. 1 (hereinafter referred to as "Amalgamating Company 1 OCRPS") under the provisions of Sections 230- 232 of the Companies Act, 20 13 read with Rule 5 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, in the interest of justice and in view of the consent affidavits given by 6 shareholders having 1 00% Amalgamating Company 1 OCRPS shareholding, in number and value, in the Amalgamating Company No. 1, as on February 28, 2025. Alternatively, in the event this Hon'ble Tribunal holds that the meeting of the Amalgamating Company 1 OCRPS shareholders of the Amalgamating Company No. 1 cannot be dispensed with, this Hon'ble Tribunal may be pleased to pass appropriate order(s)/ direction(s) for holding and convening a virtual meeting of the Amalgamating Company 1 OCRPS shareholders of the Amalgamating Company No. 1, to consider and, if thought fit,*

approve, with or without modification(s), the Scheme by voting through electronic means, including remote e-voting, at such time and date as this Hon'ble Tribunal may deem fit; and direct the appointment of a Chairperson, an Alternate Chairperson and a Scrutinizer for conducting such meeting of the shareholders holding Amalgamating Company 1 OCRPS in the Amalgamating Company No. 1 to be held on such terms as this Hon'ble Tribunal may deem fit;

(f) Pass appropriate order(s)/ direction(s) for dispensing with the convening, holding and conducting the meeting of secured creditors of the Amalgamating Company No. 1, to consider and if thought fit, approve, with or without modification(s), the Scheme; in view of the Amalgamating Company No. 1 having no secured creditors, as on March 12, 2025;

(g) Pass appropriate order(s)/ direction(s) for convenmg, holding and conducting the virtual meeting of unsecured creditors of the Amalgamating Company No. 1 through video conferencing or any other audio visual means capable of being recorded, to consider and, if thought fit, approve, with or without modification(s), the Scheme by voting through electronic means, including remote e-voting, at such time and date as this Hon'ble Tribunal may deem fit; and direct the appointment of a Chairperson, an Alternate Chairperson and a Scrutinizer for conducting such meeting of the unsecured creditors of the Amalgamating Company No.1 to be held on such terms as this Hon'ble Tribunal may deem fit;

(h) Pass appropriate order(s)/ direction(s) for dispensing with the convening, holding and conducting the meeting of equity shareholders of the Amalgamating Company No.2 under the provisions of Sections 230 - 232 of the Companies Act, 2013 read with Rule 5 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, in the interest of justice and in view of the consent affidavits given by 2 shareholders having 100% equity shareholding, in number and value, in the Amalgamating Company No.2, as on March 14, 2025. Alternatively, in the event this Hon'ble Tribunal holds that the meeting of the

equity shareholders of the Amalgamating Company No. 2 cannot be dispensed with, this Hon'ble Tribunal may be pleased to pass appropriate order(s)/ direction(s) for holding and convening a virtual meeting of the equity shareholders of the Amalgamating Company No. 2, to consider and, if thought fit, approve, with or without modification(s), the Scheme by voting through electronic means, including remote e-voting, at such time and date as this Hon'ble Tribunal may deem fit; and direct the appointment of a Chairperson, an Alternate Chairperson and a Scrutinizer for conducting such meeting of the equity shareholders of the Amalgamating Company No. 2 to be held on such terms as this Hon'ble Tribunal may deem fit;

(i) Pass appropriate order(s)/ direction(s) for dispensing with the convening, holding and conducting the meeting of secured creditors of the Amalgamating Company No. 2, to consider and, if thought fit, approve, with or without modification(s), the Scheme; in view of the Amalgamating Company No. 2 having no secured creditors, as on March 12, 2025;

(j) Pass appropriate order(s)/ direction(s) for dispensing with the convening, holding and conducting the meeting of unsecured creditors of the Amalgamating Company No. 2, to consider and, if thought fit, approve, with or without modification(s), the Scheme; in view of the Amalgamating Company No. 2 having no unsecured creditors, as on March 12, 2025;

(k) Pass appropriate order(s)/ direction(s), in terms ofRule 6(2) of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, allowing the Applicant Companies to dispatch the notices of the meetings through registered post or speed post or through courier or through e-mail, where virtual meetings have been directed to be convened, of any class or classes of creditors or members of the Applicant Companies and direct publication of the notices in relation to the said meeting(s) in the newspapers, namely Business Standard, English (Delhi NCR Edition) and Business Standard, Hindi (Delhi NCR Edition), by way of an advertisement, if required;

(l) Pass appropriate order(s)/ direction(s), in terms of Section 230(3) read with Section 230(5) of the Companies Act, 2013 read with Rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, directing the Applicant Companies to serve notice along with all the documents in such form as may be prescribed to such statutory authorities, including (a) Regional Director, Northern Region, Ministry of Corporate Affairs, New Delhi; (b) Registrar of Companies, Delhi and Haryana, New Delhi; (c) Official Liquidator; (d) Income Tax Department; and (e) BSE Limited;

(m) Pass such other order(s) as this Hon'ble Tribunal may deem fit and proper in the facts and circumstances of the case.

We have heard the submissions of Ld. Counsel appearing on behalf of the Applicant.

Ld. Counsel appearing for the Petitioner submits that all the meetings of the shareholders as prayed for in the petition be held in the first week of July, 2025.

Order **reserved**.

-Sd-
(DR. SANJEEV RANJAN)
MEMBER (TECHNICAL)

-Sd-
(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)

SURBHI